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Case Number: 25TRCV02005 Hearing Date: September 16, 2026 Dept: P

Demurrer to Plaintiff's First Amended Complaint

Moving Party: Defendants Mark Kim and Hwan Kim

Responding Party: Plaintiff Jennifer E. Staas

RULING

The court considered the moving papers, opposition, and reply. Moving Defendant's Demurrer to the second, third, and fourth causes of action in the FAC is SUSTAINED in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On June 18, 2025, Plaintiff Jennifer E. Staas ("Plaintiff") filed a complaint against Defendants Mark Kim, Hwan Kim, Christian Jee Kim, and DOES 1 through 50, inclusive (collectively, "Defendants"), alleging four causes of action for: (1) General Negligence; (2) Assault; (3) Battery; and (4) Intentional Infliction of Emotional Distress.

On January 7, 2026, Defendants Mark Kim and Hwan Kim (collectively, "Moving Defendants") filed a demurrer to the second, third, and fourth causes of action in Plaintiff's complaint. On February 25, 2026, the court sustained Moving Defendants' demurrer in its entirety with leave to amend.

On March 13, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants, alleging the same four causes of action.

On April 28, 2026, Moving Defendants filed the instant demurrer. On May 14, 2026, Plaintiff filed an opposition. On June 1, 2026, Moving Defendants filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that she lived at a condominium located at 4427 Emerald Street in Torrance, California (the "Premises"), and was a tenant of Moving Defendants. (FAC, ¶ 16.) Plaintiff alleges that on June 23, 2023, Defendant Christian Kim

(“Defendant Christian”) attacked, beat, head-butted, molested, and raped Plaintiff while she was at the Premises. (FAC, ¶ 17.) Plaintiff alleges that Defendant Christian, Moving Defendants’ son, was a property manager for the Premises and acted as Moving Defendants’ agent. (FAC, ¶ 19.) Plaintiff alleges that as property manager, Defendant Christian had keys to the Premises, a private room within the Premises, and “unfettered access” to the Premises. (FAC, ¶ 21.) Plaintiff alleges that Defendant Christian regularly approached the Premises to “check on the [P]remises, oversee maintenance, repair damages, deal with the condominium homeowner’s association, collect rents from [P]laintiff, take out the garbage and keep [Moving Defendants’] private room secure and safe.” (FAC, ¶ 21.) Plaintiff alleges that Defendant Christian would not have had access to the Premises “but for his being the property manager.” (FAC, ¶ 22.)

Next, Plaintiff alleges that Moving Defendants knew or should have known of Defendant Christian’s “violent propensities, that he had a history of violent criminal conduct, that he had attacked other people prior to attacking [P]laintiff, that he had committed prior criminal acts against neighbors and neighboring property owners in the homeowner’s association, that he had previously been arrested for felony burglary and that he had engaged in other criminal conduct that included committing acts of violence and drug use.” (FAC, ¶ 23.) Plaintiff alleges that it was reasonably foreseeable to Moving Defendants that Defendant Christian might attack Plaintiff while she was at the Premises, yet Moving Defendants did not warn Plaintiff. (FAC, ¶ 24.)

Plaintiff alleges that Moving Defendants still proceeded to employ Defendant Christian as the property manager and had the ability to control Defendant Christian. (FAC, ¶¶ 25-26.) Plaintiff alleges that Moving Defendants owed Plaintiff a special duty of care due to the landlord-tenant relationship between them. (FAC, ¶ 28.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khouri v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians’ Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party’s Argument

Moving Defendants demur to the second, third, and fourth causes of action in the FAC on the grounds that they are uncertain and fail to state facts sufficient to constitute each cause of action. Moving Defendants argue that while Plaintiff has added

allegations regarding a landlord-tenant relationship and Defendant Christian's property management role, the FAC still fails to allege facts establishing a causal nexus between the attack on Plaintiff and any employment or agency relationship. Moving Defendants argue that the FAC's allegations of employment and agency are conclusory and insufficient. Moving Defendants further argue that the FAC fails to allege facts showing that the attack on Plaintiff was reasonably foreseeable, because Plaintiff has not identified any similar prior incidents, complaints, or victims. Moving Defendants further argue that the FAC still fails to allege any outrageous conduct by Moving Defendants for the purposes of Plaintiff's fourth cause of action.

Opposing Party's Argument

In opposition, Plaintiff argues that Moving Defendants failed to comply with the meet and confer requirements. Plaintiff next argues that the FAC has properly alleged a sufficient causal nexus between Defendant Christian's property management role and the attack upon Plaintiff, by alleging: (1) specific property management duties that Defendant Christian performed that allowed him to have unfettered access to the Premises; (2) but for Defendant Christian's role as property manager, he would not have had any access to Plaintiff; (3) Moving Defendants' extensive prior knowledge of Defendant Christian's history of violence; (4) Moving Defendants formally designated Defendant Christian as their property manager on forms submitted to the county; (5) Moving Defendants owed Plaintiff a special duty because of their landlord-tenant relationship; and (6) Moving Defendants' acted outrageously by knowingly retaining a violent agent with unfettered access to Plaintiff. Plaintiff argues that general allegations of employment, agency, and course and scope of employment are ultimate facts that are sufficient to withstand demurrer.

Reply Argument

In reply, Moving Defendants reiterate their argument that Plaintiff has failed to allege facts showing that the risk of violent assault or sexual battery was inherent to the work of a property manager, an outgrowth of those duties, or is typical of Moving Defendants' residential rental enterprise. Moving Defendants argue that while conclusory allegations of course and scope of employment may be sufficient at the pleading stage, this does not apply to intentional torts such as assault. Moving Defendants argue that the FAC alleges a criminal sexual assault committed by a person who was in the same place at the same time as Plaintiff. Moving Defendants argue that a property management role does not involve physical contact with tenants, authority to control tenants, or any other characteristic that foreseeably creates a risk of assault. Moving Defendants argue that at most, Plaintiff alleges a failure by Moving Defendants to warn or protect Plaintiff, which sounds in negligence rather than intentional infliction of emotional distress.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Moving Defendants' counsel declares that upon receipt of the FAC, he "advised [P]laintiff's counsel that it was [Moving Defendants' counsel's] opinion that the amended pleading did not cure the prior defects raised in [Moving Defendants'] prior demurrer." (Lebow Decl., ¶ 10.) Moving Defendants' counsel declares that on April 24, 2026, he "wrote to [P]laintiff's counsel to confirm [Moving Defendants'] position" of their intent to demur to the FAC. (Lebow Decl., ¶ 11.)

As Moving Defendants' counsel has not stated that the parties have met in person, by telephone, or by video conference pursuant to Code of Civil Procedure Section 430.41(a), the court finds that the meet and confer requirements have not been met. However, the court will still discuss the merits of Moving Defendants' instant demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Uncertainty: CCP Section 430.10(f)

California Code of Civil Procedure Section 430.10(f) provides that a party may object to the complaint filed against them by demurrer to the pleading on the grounds that "the pleading is uncertain," a term which "includes ambiguous and unintelligible." (Code Civ. Proc. Section 430.10(f).) A demurrer for uncertainty will only be sustained where the defendant cannot reasonably respond to the complaint, such that the defendant cannot reasonably determine what claims are directed against her, or what issues must be admitted or denied. (Khoury, supra, 14 Cal.App.4th at 616.)

The court finds that Moving Defendants are reasonably able to respond to the FAC and have determined that causes of action for assault, battery, and intentional infliction of emotional distress are directed against them. Moving Defendants have stated the elements of each cause of action, and thus the court concludes that the FAC is not fatally uncertain.

Accordingly, Moving Defendants' special demurrer for uncertainty is **OVERRULED**.

C. Second and Third Causes of Action: Assault and Battery

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he or] she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So, supra, 212 Cal.App.4th at 668-669.)

Here, Plaintiff alleges in her second cause of action that Defendant Christian "acted toward [P]laintiff intending to cause harmful contact with [P]laintiff, and that [P]laintiff reasonably believed she was about to be touched in a harmful or offensive manner by [Defendant Christian]. As a direct and proximate result thereof, [P]laintiff reasonably believed that an imminent harmful contact with her person was about to occur." (FAC, p. 10, IT-3.) In her third cause of action, Plaintiff alleges that Defendant Christian "acted toward [P]laintiff to intentionally subject [P]laintiff to a harmful or offensive touching that actually and proximately caused [P]laintiff to suffer injury and that [Defendant Christian's] conduct constituted intentional harmful and/or offensive unconsented contact with the person of [P]laintiff." (FAC, p. 11, IT-9.)

As to Moving Defendants, Plaintiff alleges that Defendant Christian's conduct against Plaintiff "occurred within the course and scope of his employment to [Moving Defendants], defendants and each of them, and therefore defendants and each of them are liable for [Defendant Christian's] conduct under the doctrine of respondeat superior liability." (FAC, pp. 10-11, IT-7, IT-12.)

Moving Defendants argue that the FAC's allegations of employment and agency are conclusory, and that Plaintiff fails to allege facts showing that the attack on Plaintiff was connected to Defendant Christian's property management duties.

Under the respondeat superior doctrine, an employer may be vicariously liable for torts committed by an employee. (Persson v. Smart Inventions, Inc. (2005) 125 Cal.App.4th 1141, 1167.) Vicarious liability is not an independent cause of action but rather a legal doctrine that imposes liability on one party for the actions of another. (Montague v. AMN Healthcare, Inc., (2014) 223 Cal.App.4th 1515.) "The 'nexus' required for respondeat superior liability — that the tort be engendered by or arise from the work — is to be distinguished from 'but for' causation. That the employment brought the tortfeasor and victim together in time and place is not enough [T]he incident leading to the injury must be an 'outgrowth' of the employment, the

risk of tortious injury must be 'inherent to the working environment' or 'typical of or broadly incidental to the enterprise the employer has undertaken.'" (Lisa M. v. Henry Mayo Newhall Memorial (1995) 12 Cal.4th 291, 298.)

"While the employee thus need not have intended to further the employer's interests, the employer will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee's work." (Id. at 297.) An intentional tort is only foreseeable for the purposes of the respondeat superior doctrine if "in the context of the particular enterprise an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among other costs of the employer's business." (Rodgers v. Kemper Constr. Co., (1975), 50 Cal.App.3d 608, 619.) For the harm to be foreseeable, the "employment must be such as predictably to create the risk employees will commit intentional torts of the type for which liability is sought." (Lisa M., supra, 12 Cal.4th at 302.)

The court finds that even with the FAC's additional allegations regarding the specific job duties of Defendant Christian as property manager, Plaintiff has failed to allege anything more than facts showing that Defendant Christian's role as property manager at the Premises brought him and Plaintiff together in time and place. Plaintiff has not alleged facts showing that Defendant Christian's conduct was an "outgrowth" of his employment as property manager, or that the risk of battery or assault was "inherent to the working environment." (Lisa M., supra, 12 Cal.4th at 298.) Plaintiff's description of Defendant Christian's duties does not involve any direct contact with Plaintiff or other tenants at all, outside of "collect[ing] rents." (FAC, ¶ 21.) Therefore, the court concludes that Plaintiff has failed to sufficiently allege a causal nexus between Defendant Christian's conduct against Plaintiff and Defendant Christian's role as property manager.

The court notes that Plaintiff also alleges that Defendant Christian acted as an "agent of Moving Defendants. (FAC, ¶ 22.) Therefore, the court will consider whether Plaintiff has alleged facts showing ratification of Defendant Christian's conduct by Moving Defendants.

"Ratification is the voluntary election by a person to adopt in some manner as his own an act which was purportedly done on his behalf by another person, the effect of which, as to some of all persons, is to treat the act as if originally authorized by him." (Rakestraw v. Rodrigues (1972) 8 Cal.3d 67, 73; Brown v. USA Taekwondo (2019) 40 Cal.App.5th 1077, 1106.) "Whether an employer has ratified an employee's conduct is generally a factual question." (C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110.) "A principal may be liable when it ratifies an originally unauthorized tort. (Id. at 1111.) "An essential element of the legal principle of ratification is knowledge by the principal of the unauthorized act of his agent and of its material circumstances." (Johnson v. California Interurban Motor Transp. Ass'n (1938) 24 Cal.App.2d 322, 336.)

Here, Plaintiff has not alleged any awareness of Moving Defendants of Defendant Christian's alleged attack on Plaintiff or the material circumstances surrounding it, nor has Plaintiff alleged any affirmative acts taken by Moving Defendants following Defendant Christian's conduct that would indicate ratification by Moving Defendants.

Therefore, the court finds that Plaintiff has not cured the defect previously identified by the court by either sufficiently alleging a causal connection between Defendant Christian's alleged assault and battery against Plaintiff and his employment as property manager or by alleging knowledge of the alleged assault and attack and ratification by Moving Defendants.

Accordingly, Moving Defendants' Demurrer to the second and third causes of action in the FAC is SUSTAINED.

D. Fourth Cause of Action: Intentional Infliction of Emotional Distress

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Here, Plaintiff alleges that “the conduct of defendants, and each of them, was outrageous, beyond the scope of conduct to be tolerated in modern society and done with either the intent of causing harm or reckless disregard of the probability of causing emotional distress to [P]laintiff,” and that Plaintiff has “suffered and will continue to suffer severe mental and emotional distress, fear and anxiety, interference with her life, employment and relationships, and other damages.” (FAC, p. 12, IT-14,15.)

Moving Defendants argue that Plaintiff has failed to add allegations to her fourth cause of action, such that the FAC still fails to allege any outrageous conduct by Moving Defendants themselves. The court agrees.

At most, the FAC alleges that Moving Defendants failed to warn Plaintiff about Defendant Christian’s “propensities or prior conduct,” and that despite Moving Defendants’ knowledge of Defendant Christian’s “violent propensities,” and “history of violent criminal conduct,” Moving Defendants “did not terminate, fire, discipline, suspend, reprimand, counsel, or remove [Defendant Christian] from being their employee, agent, representative and property manager, and remove him from the premises” prior to Defendant Christian’s alleged assault and battery of Plaintiff. (FAC, ¶¶ 23-25.)

The court again concludes that Plaintiff has not alleged that Moving Defendants undertook any outrageous conduct that intentionally caused Plaintiff to suffer emotional distress or that Moving Defendants’ conduct was done with reckless disregard of the probability of causing emotional distress. At most, Plaintiff alleges that Moving Defendants negligently caused Plaintiff emotional distress by failing to warn Plaintiff about Defendant Christian and by allowing him to continue working as property manager prior to the alleged incident.

The court also refers to its previous discussion and finds that Plaintiff’s allegations regarding an employment relationship and agency relationship between Moving Defendants and Defendant Christian are insufficient to state a cause of action against Moving Defendants for Defendant Christian’s intentional torts.

Accordingly, Moving Defendants’ Demurrer to Plaintiff’s fourth cause of action is SUSTAINED.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court previously granted Plaintiff leave to amend her second, third, and fourth causes of action to allege a causal nexus between Defendant Christian’s alleged assault and battery against Plaintiff and his duties as property manager, and to allege conduct by Moving Defendants rising to the level of being “outrageous” for the purposes of Plaintiff’s fourth cause of action. The court continues to identify the same defects in the FAC.

Accordingly, the court DENIES Plaintiff leave to amend her second, third, and fourth causes of action against Moving Defendants.

CONCLUSION

Based on the foregoing, Moving Defendants’ Demurrer to the second, third, and fourth causes of action in the FAC is SUSTAINED in its entirety without leave to amend.

Prevailing party on motion is ordered to give notice of ruling.